

Code of Regulations for Approved Nursery and Primary Schools

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State of Tamilnadu- Act

Code of Regulations for Approved Nursery and Primary Schools

TAMILNADU

India

Code of Regulations for Approved Nursery and Primary Schools

Rule CODE-OF-REGULATIONS-FOR-APPROVED-NURSERY-AND-PRIMARY-SCHOOLS of 1991

Published on 24 April 1991

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Code of Regulations for Approved Nursery and Primary Schools

Published vide Notification No. G.O. Ms. No. 484, Education, dated 24th April 1991

Chapter I

Introduction

1.

(i) The Code applies to Approved Nursery and Primary Schools under the control of Director of Elementary Education, Tamil Nadu.

(ii)

It shall come into force on such date as the Government may by notification appoint.

2.

Definitions.

- The Approved Nursery/Primary Schools in this Code signifies the schools which were approved by the Department of Elementary Education. In this Code, unless the context otherwise requires,-

(i)

The term "School" signifies Approved Nursery and Primary Schools;

(ii)

The term "Government" signifies the Government of Tamil Nadu;

(iii)

The term "Director"- signifies the Director of Elementary Education;

(iv)

Headmaster/Headmistress denotes the head of Approved Nursery and Primary Schools;

(v)

"Educational Agency" means any person or body of person which has established and is administering or proposes to establish and administer such Nursery and Primary Schools;

(vi)

The term "Board" means Board of approved Nursery and Primary Schools.

3.

The responsibility of maintenance and control of every Approved Nursery/Primary School shall vest in a governing body which shall be responsible for the fulfilment of all the conditions. The governing body may entrust the management of a school to a Manager or/and a Correspondent responsible to it. But, such delegation will not divest of ultimate responsibility to the Department and Government. The Manager or/and Correspondent duly appointed by the governing body of the Educational Agency shall be approved by the Department.

In communicating with the department, the Manager or Correspondent should invariably address the Director of Elementary Education or the authority appointed by him.

4.

The interpretation of any Article in this Code shall vest with the

5.

The appendices to the Code shall have the same effect as Articles of the Code and shall be treated as part of the Code.

6.

The Approved Primary/Nursery Schools will be considered as a separate entity by the Department.

7.

The Schools will continue to be fee based and use English or Tamil or other minority languages as medium of instruction.

7A.

Tamil should be taught compulsorily in the Nursery Classes and Standards I to V. In the case of pupils whose mother tongue is not Tamil and who wish to study their own language under Second Language, Tamil be made a Compulsory Additional Language.

8.

This Code shall be applicable also to Pre-primary Classes, Std. I to V of Approved Nursery /Primary Schools.

8A.

The Management should be prepared to run the Institution without any kind of Grant-in-aid from the Government all the time.

8B.

A separate Board of Approved Nursery and Primary Schools will be constituted.

Chapter II

Approval of Unrecognised Nursery/primary Schools

9.

All unrecognised Nursery/Primary Schools as on will be given approval by the Department on submission of particulars in the proforma prescribed (Annexure I). Approval will be accorded for Nursery Classes and Primary Classes, i.e., Standards I to V that actually exist.

10.

Powers to grant Approval.

- (i) The competent authority to grant approval to an unapproved of Nursery/ Primary Schools or to upgrade the existing school will be the Director or an Officer authorised by him. The application will be made in proforma prescribed in Annexure I. The fees to be paid in respect of every application to open an Approved Nursery/Primary School shall be Rs. 500. The fee shall be credited to Government under the Head of Account prescribed by the Department.

(ii)

A list of Approved Nursery/Primary Schools approved by the Department shall be placed before the Board for information.

(iii)

The following conditions shall be satisfied for the purpose of approval.

(a)

[The Educational Agency shall produce-

[Substituted by G.O. Ms. No. 117, School Education (Q-I). Department, dated the 7th September 2004.]

(1)

a licence permitting the use of the School building as public Building under the Tamil Nadu Public Buildings (Licensing) Act, 1965 (Tamil Nadu Act XIII of 1965);

(2)

a structural stability certificate of the School building issued by the Executive Engineers of the Public Works Department or from the Chartered Engineers in the panel of qualified and Registered Engineers maintained by the District Collectors in accordance with the Tamil Nadu Public Buildings (Licensing) Act, 1965;

(3)

a Sanitary and Hygiene Certificate issued by the Health Officer of the locality; and

(4)

a No Objection Certificate obtained from the Station Officer (Fire and Rescue) in the area, where the School is situated.

(aa)

There shall not be any thatched structure in the School Premises.]

(b)

Where the licence has been issued for a specific period, the fresh licence shall be produced before the expiry of the period of validity of the said licence.

(c)

The Educational Agency must satisfy that the school is actually needed in the locality or district and that it has sufficient buildings, class rooms, laboratories, furniture, sanitary facilities and adequate grounds for Physical Training activities.

[xxx]

[Omitted by G.O. Ms. No. 85, School Education (QI) Department, dated the 20th June 2003.]

(d)

The Management should create an endowment as prescribed below which shall be deposited in any small savings scrip within three months and send a copy of the Deposit Receipt to the Director or an Officer authorised by him for verification.

Strength

Endowment

(i) Schools with up to 100 pupils.

Rs. 5,000

(ii) Schools with 101-250 pupils.

Rs. 7,500

(iii) Schools with 251-500 pupils.

Rs. 15,000 (in three equal annual instalments)

(iv) Schools with above 501 pupils.

Rs. 25,000 (in three annual instalments) Rs.

10,000+ Rs. 10,000+ Rs. 5,000 ---

(e)

In addition to the creation of the endowment referred to above in the case of new schools, the Educational Agency shall also deposit in any scheduled-bank in the name of the school, a sum equivalent to a minimum of one month's salary of

the staff employed in the school to serve as a working capital of the school which may be drawn for the disbursement of salary to the members of the staff on the due date in the event of any delay in the disbursement of salary.

(f)

The Educational Agency in the case of new schools should have fulfilled all the conditions stipulated by the competent authority at the time of according approval to open the school. No school shall be permitted to function without approval. Nobody will be permitted to start the school without getting the approval from the competent authority.

(g)

The school shall be situated in a building which is accessible to all castes and communities.

(h)

The management of a school shall not appoint any teacher whose certificate has been suspended or cancelled or who has been declared unfit to be a teacher in approved schools or who has been convicted for offences involving moral turpitude.

(i)

It shall be open to the competent authority to reject the application of a new school for approval if he considers that any one of the conditions has not been satisfied.

(j)

The Director or Officer authorised by him may visit an approved school during school hours.

(k)

The sanitary certificate must be obtained from the Competent Health Authorities.

(l)

The Educational Agency should adopt a common curriculum prescribed by the Government with freedom for teachers to innovate teaching methodologies. An approved Nursery/Primary School should follow only approved text books which are prepared/approved in accordance with the prescribed curriculum and syllabus for the pre-primary and primary classes. Guide books will be supplied for all the subjects.

(m)

The approval is given for LKG, UKG, I Std. to V Std. in English, Tamil medium and other minority languages.

(n)

Annual affiliation continuance fee shall be as follows:-

No. of pupils

Annual Affiliation Fees

Up to -100

-

Rs. 150

101-250

-

Rs. 250

251-500

-

Rs. 400

501 and above

-

Rs. 500

(o)

[Further approval, to those Nursery/Primary Schools which have already got the approval of the Education Department will continue only if they come forward to teach any two of the three subjects, under Part III through the Medium of Tamil.]

[Inserted by G. O. Ms. No. 97, School Education (C2), dated the 9th April 1999.]

11.

Withdrawal of permission.

(a)

The competent authority for withdrawing approval of a Nursery/Primary School will be the Director or an Officer

authorised by him.

(b)

The approval shall be withdrawn permanently or for any specified period by the Director or an Officer authorised by him after a proper enquiry, if the Educational Agency or its authorised representative violates any one of the conditions stipulated for approval.

11A.

[Admission in Elementary Schools.

[Inserted by G. O. Ms. No. 97, School Education (C2), dated the 9th April 1999.]

- Boys and Girls who are studying / have studied in approved schools, approved under Regulation for approved Nursery and Primary Schools, Tamil Nadu or recognised schools, recognised under the Tamil Nadu Recognised Private Schools (Regulation) Act, 1973 (Tamil Nadu Act 29 of 1974) and the Tamil Nadu Recognised Private Schools (Regulation) Rules, 1974 are eligible for admission in recognised schools. Any pupil who studied in an unapproved or unrecognised school, as the case may be, shall be admitted in the eligible standard and based on the performance in the entrance test conducted by the recognised school in which they are seeking admission provided they satisfy the other conditions for admission. A pupil from an unrecognised school shall not be admitted into a standard above standard VI.]

Chapter III

Admission And Withdrawals

12.

Admission.

- (i) The Headmaster/Headmistress will have the right of admission and will also be responsible for admission and to Rules and Instructions issued by the Department from time to time.

(ii)

A pupil with a valid transfer certificate shall be admitted to the standard to which the transfer certificate declare him/her fit. The pupil should not be placed in a class higher or lower.

(iii)

Age of Pupils.-Pupils admitted into pre-primary classes and five years of age on 31st July of that year, 31st July will be the reference date. No exemption from the operation of the age rules will be applied for or sanctioned for pupils studying in Standard I for it defeats the very purpose of having a minimum age limit.

(iv)

Age rules need not be applied in other Standard for pupils who are coming for admission with valid transfer certificates from other recognised schools.

(v)

Age rules should be applied to the pupils as applicable to pupils of recognised Schools. The Director or an Officer authorised by him is competent to give exemption up to a period for six months in deserving cases on the recommendation of Headmaster/Headmistress in the case of admission in Std. II and above.

(vi)

Application of admission shall be made in the form prescribed in Annexure II. The Headmaster/Headmistress may at his/her discretion demand a valid birth certificate at the time of admission. Baptism Certificate may be accepted as equal to birth certificate. The date of birth once entered will not be altered except when on obviously absurd entry has to be corrected or when a civil court directs correction in any individual case. In these cases, the correction should be made only under the orders of Director or Officer authorised by him and should be attested by an Officer authorised by the Director.

(vii)

No pupil who has not attended an approved school in the first term shall be admitted in the second term to any of the approved school without the prior permission of the Director or an Officer authorised by him. (The first term will constitute the months from June to December, and the Second term will constitute the months from January to April).

(viii)

Transfer Certificates received from other States should bear the counter signature of the Inspecting Officer of the concerned State.

13.

Withdrawal.

- Transfer Certificate may be issued only on application by parents or guardians in writing. Transfer Certificates should not be issued in the case of pupils debarred till the period is over. A form for Transfer Certificate is given in Annexure III.

Chapter IV

School Regulations

14.

(i)

School Hours.- The ordinary school day shall consist of not less than four hours in Stds. I to V. The holding of school for more than three consecutive hours is prohibited. In the lower classes, if the pupils are young, at least one break of fifteen minutes shall be allowed where the course of continuous instructions extends to three hours.

(ii)

Working days.-The minimum number of working days in a year should be 220 including Examination Days. At the beginning of an academic year, the schools will draw up a list of working days and holidays and send the same to the Director or an Officer authorised by him.

(iii)

School Uniform:

(a)

Uniform for Teachers and Headmistresses:

Yellow Saree and Yellow Blouse.

(b)

Uniform for Boys:

Navy Blue shorts and White half shirts, Black shoes with white socks, Blue tie with school badge.

(c)

Uniform for Girls:

Navy Blue Skirts, White Blouse, Blue socks, Blue tie with School badge.

Admission in excess of 50 pupils in a standard or a section of a standard should not be made without the prior permission of the Director or an Officer authorised by him provided there is sufficient accommodation. There should not be more than four sections in a class. Each section should have a separate classroom. To open a fifth section for a standard, permission should be obtained from the Director or an Officer authorised by him. Information shall be given to the Director or an officer authorised by him when a section is closed down.

(iv)

The name of the school should be as found in the approval order. The name of the school will be exhibited prominently in Tamil and English.

15.

Annual promotion.

- Promotions will be made annually by the Headmaster/Headmistress. The Headmaster/Headmistress will be ultimately responsible for promotion. There will be no double promotion in any one year.

The Headmaster/Headmistress will draw the principle of promotions every year in consultation with the Staff Council. Principles may differ for each standard and section. But once principles are framed there should be no deviation. Standard wise principles of promotion and detention lists should be recorded in a register and signed by the Headmaster/ Headmistress and teachers concerned within a week after the completion of promotions and before publishing the results. However, the promotion rules applicable to recognised primary schools shall be applied. ^

Chapter V

Financial Side of Approved Nursery and Primary Schools

16.

(i)

The approved Nursery and Primary schools will, continue to enjoy the financial autonomy hitherto enjoyed by them. They will ensure that the fees that they are levying are reasonable and are commensurate with the expenditure involved and amenities provided. After the financial year is over, the accounts are to be audited by a Chartered Accountant and a certificate signed by the auditor to the effect that the accounts have been audited, should be sent to the Director or an Officer authorised by him within a month after the completion of audit.

(ii)

The teaching and non-teaching staff in Approved Nursery and Primary Schools should be paid decent salary proportionate to the income of the School which is primarily made up of School Fees.

Chapter Vi

Staff

17.

Qualification of the Staff.

- The Staff will be qualified in accordance with the rules prescribed in Annexure V to the Tamil Nadu Recognised Private Schools (Regulation) Rules, 1974 insofar as it applied to the members of staff in these schools:

Proviso: Only Lady Teachers be appointed for Nursery Classes and for Standards I to V.

(a)

The teaching staff who are untrained at the time of approval will be retained conditionally in service till they undergo proper training courses. The teaching and non-teaching staff can be appointed by the respective managements.

(b)

The teachers to be appointed in future in the existing approved Nursery and Primary Schools and the teachers to be appointed in the new Nursery and Primary Schools to be opened should be qualified trained teachers only.

18.

The members of the staff including the Headmaster/Headmistress will retire at the age of 58. If they have to retire in the middle of the academic year, they will continue to be re-employed till the close of the academic year, i.e., 31st May. The Director is empowered to give extension for a period of two years only. One year at a time in respect of Headmaster/Headmistress of unrecognised Nursery/Primary Schools who attain the age of 58 in special cases provided that the services, conduct and character of the Headmaster/Headmistress are extraordinarily satisfactory and the management, also recommends and he/she is physically fit to continue in service for the period to be extended.

19.

In a vacancy, member of teaching and non-teaching staff shall be appointed only on probation for a period of 12 months from the date of his/her appointment. But, the school authority may, before the expiry of that period extend it, to a further period not exceeding 12 months for reasons to be given in writing to the teacher and acknowledged by the teacher.

20.

Terminations.

- (A) In respect of a teacher or a member of non-teaching staff appointed temporarily or to act on probation, the management shall have power to terminate the services of such teacher or a member of non-teaching staff without notice for any or all of the following reasons:-

(i)

Wilful neglect of duty, serious misconduct, gross insubordination, mental unfitness, suspension or cancellation of Teachers Certificate by the Director or by an Officer authorised by him under the Code of Regulations for approved Nursery/Primary schools.

(ii)

With notice of two months or two months salary in lieu thereof for the following reasons:-

(a)

Incompetence,

(b)

Retrenchment, and

(c)

physical unfitness or any other good cause.

Terminations. - (B) In respect of teachers or a member of non-teaching staff appointed permanently, the management shall have the power to terminate the services of such teacher or a member of non-teaching staff without notice for any or all of the following reasons:-

(i)

Wilful neglect of duty, serious misconduct, gross insubordination, mental unfitness, suspension, or cancellation of teachers certificate by the Director or an Officer authorised by him under the Code of Regulations for approved Nursery/Primary Schools.

(ii)

With three months notice or three months salary in lieu thereof for the following reasons:-

(a)

Incompetence;

(b)

Retrenchment;

(c)

and physical unfitness or any other good cause.

Subject to the Proviso given below:

(i)

The School authority shall not terminate the services of the said teacher or a member of non-teaching staff whether summarily or otherwise without informing him/her in writing of the grounds on which they intend to take action and giving him/her what in their views is a reasonable opportunity for stating his/her case in writing and before coming to a final decision, shall duly consider his/her statement and if he/she so desires give him/her a personal hearing or conduct an enquiry.

(ii)

It shall be lawful for the school authority at any time if satisfied on medical evidence that the said teacher or a member of non-teaching staff is unfit and is likely for a considerable period to continue unfit by reason of ill-health for the discharge of his/her duties as such teacher or a member of non-teaching staff to terminate his/her services on paying him/her three month salary less any amount which may have been paid to him/her as leave allowance after the date of his/her last appearance in the school, for the regular discharge of his/her duties as teacher or a member of non-teaching staff subject to a minimum of one month full salary.

(iii)

That the said teacher or a member of non-teaching staff shall not during the period of this agreement when he /she has not been given notice or termination of his/her services by the school authority or has not given notice to the school authority for such termination of his/her services apply for an appointment under any other authority except through the school authority and the penalty for any breach of this may at the discretion of the school authority be dismissal from service. The school authority shall not refuse to forward such application but may decline to relieve him/her when the need arises unless he/ she gives due notice or pays an amount equal to the salary for three months.

(iv)

That the said teacher or a member of non-teaching staff when he/she becomes a permanent member of the staff of the said school shall be entitled to have his/her services terminated either by giving to the school authority three months notice thereof in writing or by paying that authority three months salary in lieu of such notice.

21.

Minor Punishment.

- The management may impose any of the following minor punishments on the said teacher or a member of non-teaching staff for any irregularity or breach of the code of conduct on the part of the said teacher or a member of non-teaching staff.

(i)

Censure;

(ii)

Withholding of increment with or without cumulative effect;

(iii)

Recovery from pay to the extent necessary of the monetary value equivalent to the amount of increments ordered to be withheld where such an order cannot be given effect to:

Provided the management follows all the procedure as laid down for awarding major punishment and arrives at the decision of awarding a punishment.

22.

Agreements.

- Tire management shall enter into an agreement with the teacher or a member of non-teaching staff in Forms given in Annexure V, if the appointment is for a period exceeding six months.

Three copies of the Agreement shall be executed. One copy shall be furnished to the teacher or a member of

non-teaching staff concerned, the other copy shall be retained by the management and the third copy shall be forwarded to the Director or an Officer authorised by him.

(a)

In all cases of punishment, except in cases, of censure, an appeal lies with the Director or an Officer authorised by him in respect of Headmaster/ Headmistress, teachers and other staff of the Schools. A second appeal shall lie with the Director of Elementary Education against the orders passed by the officer authorised by him. If the appeal is made after two months from the receipt of orders of punishment, it will be considered as belated.

Chapter VII

Leave Rules

23.

The leave rules approved by the Government of Tamil Nadu for teaching and non-teaching staff in other recognised schools are applicable to approved Nursery /Primary schools.

Chapter VIII

Registers

24.

The following registers will be maintained by Approved Nursery/ Primary Schools:-

1. Pupil's Attendance-Register
2. Staff Attendance Register - Teaching
3. Staff Attendance Register-Non-teaching
4. Admission and withdrawal Registers
5. Stock Register for furniture
6. Stock Register for Library
7. Casual Leave Register
8. Leave other than Casual Leave Register
9. Scale Register Graduate: No. of Secondary Grade, Nursery, etc.
10. Acquittance Register
11. Scholarship Register
12. Concession Register 1
13. Consolidated Marks Register.
14. Promotion Register
15. Visitor's Book
16. Log Book.

The School will maintain counterfoil for all Transfer Certificates issued.

The Registers will be maintained properly and the returns required by the department will be furnished promptly by management. This will be one of the conditions of approval.

A service Register shall be maintained for every teacher or a member of non-teaching staff showing among others, date of appointment, the scale of pay in which he/she appointed, the minimum increment given from time to time the leave to his/her credit and the leave granted and other relevant entries like awards of punishment.

The procedure adopted by the Matriculation Schools regarding the opening and maintenance of Teachers Service Registers shall be adopted in approved Nursery/Primary Schools.

Chapter IX

Buildings

25.

Use of School Buildings.

- The premises of an educational institution or any subsidiary building apportioning to it or playground or vacant site belonging to an approved Nursery/Primary School whether adjacent or remote from it shall ordinarily be used only for the purpose of functions conducted by such institutions. In no case the use of such building, playground or vacant site shall be given for political meetings. The school will make available their halls for the conduct of examinations, if required.

Chapter X

Closure of Schools

26.

An Educational Agency shall close a school or a standard of a course of instructions therein only after giving notice in writing one year prior to such closure to the competent authority who had given approval to open school, the standard of the course of instruction. Such notice shall set out an alternate arrangements proposed to be made for this continuance of instruction to the pupils of the school or standard or course of instruction. Such closure however shall be permitted only with effect from the end of school year. The competent authority while giving such permission shall satisfy himself about the adequacy of the alternate arrangements proposed to be made and that any property endowed to the school proposed to be closed shall continue to be used for the educational purpose in accordance with the object of the Trust or Endowment.

Chapter XI

Disciplinary Regulations For Pupils

27.

(i)

Cross cases of immorality or insubordination shall be punished by expulsion after charges are framed and a reasonable opportunity to defend himself/herself is given and a suitable enquiry is conducted by the Headmaster/ Headmistress. A report should be sent of all such cases to the Director or an officer authorised by him within seven days.

(ii)

If admission has been secured for a pupil by means of false certificate or false representation of any kind, he shall be summarily dismissed by the Headmaster/Headmistress with forfeiture of whatever fees he/she may have paid.

(iii)

The Headmaster/Headmistress may frame and issue from time to time disciplinary rules of a permanent or temporary character regulating the conduct within the school for the standards of approved Nursery/ Primary Schools.

(iv)

The Headmaster/Headmistress may frame and issue from time to time disciplinary rules of a permanent or temporary character regulating the conduct outside the school so far as such rules seem necessary to maintain the credit usefulness and regulation of the school.

(v)

The Headmaster/Headmistress shall have full power to inflict the following punishments in the interest of the students:-

(a)

Fines;

(b)

Loss of attendance;

(c)

Suspension; and

(d)

Expulsion.

28.

(i)

If the Headmaster/Headmistress of an approved Nursery/Primary School is found to be negligent in the discharge of his/her duties or is found to have committed any irregularity, the Educational Agency will be the authority to take disciplinary action. The Director shall act when the educational agency fails to act.

(ii)

After the conduct of the personal hearing or enquiry by the management a notice will be issued to him/her setting out the proposed punishment and he/she shall be given a reasonable time to defend himself/herself against the proposed punishment.

(iii)

An appeal shall lie with the Director in the case of orders issued by the officer authorised by him.

29.

If the Correspondent of an approved Nursery/Primary Schools is found guilty of malpractice and corruption, the Educational Agency shall conduct an enquiry and take suitable action against him/her failing which the Director or an Officer authorised by him will take action, after conducting a thorough and proper enquiry. An appeal shall lie with the

Director of Elementary Education against the orders of the officer authorised by him in this regard.

Annexure I

Proforma Application for the Approval of Nursery and Primary Schools

1. Name of the School with full address:

2. (a) Date on which the school is permitted by the Director:

(b)

Reference number and date of orders of the Directorate:

3. Name of the Educational Agency managing the school:

4. Name of the Manager (if there is a post as such):

5. Name of the authorised Correspondent:

6. Name of the Headmaster/Headmistress of the School:

7. (a) Standard to which approval is sought:

(b)

Standard wise and section wise in strength (to be given in a separate Annexure):

(c)

Particulars of strength of attendance (roll and attendance) of such schools (Standard-wise particulars should be furnished):

(d)

Whether there is any natural barrier between the existing school/schools and the proposed school, if so, the same may be furnished in detail.

[Sub-items (c), (d), (e), (f) were added by G.O. Ms. No. 126, School Edn. dated 20-4-1998 and sub-items (c) and (d) were omitted and sub-items (e) and (f) were renumbered as (c) and (d) by G.O. Ms. No. 85, School Education (QI), dated 20-6-2003]

8. Particulars of Teaching and Non/Teaching Staff employed in the school (to be given in a separate annexure)

Sl. No.

Name

Date of Birth

Academic Qualification with subject studied in degree

Professional Qualifications with subject

Pay

Total Service other recognized Schools and matriculation schools

Total Service the present School

Total Service column 7(a)+ 7(b)

1

2

3

4

5

6

7(a)

7(b)

7(c)

9. (a) Details of accommodation and sanitation available should be enclosed preferably with a sketch

(b)

The portions of the building occupied by the approved schools may be shown separately in the sketch.

(c)

Whether water facility is available

(d)

Whether owned or rented or rent free.

10. Details of furniture, appliances and apparatus available

11. (a) Whether a Library is provided (b) Number of volumes available

12. Playground

(a)

Area available in acres

(b)

Owned or leased

13. (a) Whether the school has created the endowment as required by the Directorate as prescribed in the Code of Regulations Rule

(b)

If so, the amount of endowment created

(c)

Cash reserve as required in Rule 10(iii)(e)

14. Fees levied in each standard

15. Whether the school is holding a licence permitting the use of the school building under the Tamil Nadu Public Building (Licensing) Act. (Tamil Nadu Act 8 of 1965) copy to be enclosed)

16. Whether the school has received a sanitary certificate from the competent authority (in Chennai City Director of Public Health) (Copy to be enclosed.)

17. Whether the management is willing to run the school if approved without claiming any kind of grant-in-aid from Government at all times.

Declaration

On behalf of the Management of the school, I hereby declare that we shall abide by the conditions for approval in rule 10 and the provisions of the code of regulations for approved Nursery and Primary School.

Signature of the person duly authorised by the Government.

Annexure II

Application for Admission into Approved Nursery/primary Schools

1. Name of pupil:

2. Date of Birth:

3. Nationality and State to which the pupil belongs:

4. Religion (this information is intended only for statistical purposes):

5. Does the candidate belong to Scheduled Caste or Scheduled Tribe or other socially and educationally backward classes specified in the Tamil Nadu Educational Rules or is he a convert from the concept from the Scheduled Caste or the Scheduled Tribe? If so, please specify

6. Whether living with parent or guardian and local residence if not living with parent or guardian

7. (a) Name of parent:

(b)

Occupation:

(c)

Full Address:

8. (a) Name of guardian:

(b)

Occupation:

(c)

Full address:

9. Class last studied, name of school last attended and whether qualified for promotion

10. Whether Record Sheet/transfer Certificate or Elementary School Leaving Certificate and (or) record sheet is attached.

11. Class into which admission is sought.:

12. Mother tongue of the pupil:

13. Languages proposed to be taken under Second Language:

14. Protection from small pox whether vaccinated or small pox marked:

15. Previous school history of pupil:

I declare that the statement above is correct and that the pupil has not attended any other school besides those mentioned above.

I declare that I will not ask for a change in date of birth in the future.

Station:Date:

Signature of Parent/Guardian.

Orders of the Headmaster/Headmistress (regarding admission with signature and date)

Annexure III

Form of Record Sheet/transfer Certificate

Number:

1. Name of the school which the pupil is leaving:

2. Name of the pupil:

3. (a) Name of the Father:

(b)

Nationality, Religion or Caste:

(c)

Community (State whether the pupil belongs to) :-

(i)

Adi Dravidar (SC or ST):

(ii)

Backward Class:

(iii)

Most Backward class:

(iv)

Converts to Christianity from SC or ST:

(v)

Denotified Communities:

4. Date of birth (in words) as entered in the Admission Register

5. Standard in which the pupil was reading at the time of leaving (in words)

6. Date of admission or promotion to that standard. The year to be entered in words

7. Whether qualified for promotion to a higher standard:

8. Date on which the pupil actually left the school:

9. Date on which application for Record sheet/Transfer Certificate was made on behalf of the pupil by his/her parent/Guardian

10. Date of Record Sheet/Transfer Certificate:

11. Signature of the Headmaster/Headmistress:

Annexure IV

Code of Conduct for Teachers and Other Persons Employed in an Approved Nursery and Primary School

1. Every teacher or other person employed in an approved Nursery and Primary School, shall discharge his/her duties efficiently and diligently and shall conform to the rules and regulations.

2. No teacher or other person employed in approved Nursery/Primary School shall absent himself/herself from his/her duties without prior permission. In cases of sickness or absence on medical grounds a medical certificate to the satisfaction of the school authorities shall be produced within a week.

3. No teacher or other persons employed in an Approved Nursery/Primary School shall engage directly or indirectly in any trade or business. In the case of remunerative work like private tuitions, specific written sanction of the school authorities shall be obtained.

4. (a) No teacher or other persons employed in an approved Nursery/Primary school shall send any application for employment under any other agency except through the Management of the School.

(b)

The management shall not withhold any such application. It shall, however, be open to the Management to prescribe reasonable conditions for relieving him/her.

5. Prior permission of the management shall be obtained in a case where any teacher or other person, employed in an approved Nursery/Primary school seeks to accept honorary work without detriment to his/her duties as a teacher.
6. A teacher or other person employed in an Approved Nursery/Primary school who becomes involved in a criminal proceedings shall inform the management of such proceedings.
7. No teacher or other person employed in an approved Nursery/Primary School shall engage himself/herself in any political activity. He/she shall not be associated with any political party or any organisation which takes part in politics or shall subscribe to or assist in any other manner any political movements.
8. No teacher or other person employed in an approved Nursery/ Primary School shall contest or participate in or canvass for any elections. Such restriction will not however apply to the teachers in respect of elections to the teachers constituencies.
9. No teacher or other person employed in an approved Nursery/Primary School shall bring or attempt to bring any political or outside pressure on his/ her superior authority in respect of his/her individual service interest.
10. No teacher or other person employed in an approved Nursery/Primary School shall engage himself/herself or participate in any demonstration or activity which is prejudicial to the sovereignty and integrity of India, the Security of the State or friendly relation with foreign States. Public order, decency or morality or which involves contempt of Court, defamation or incitement to an offence.
11. No teacher or other person employed in an approved Nursery/ Primary School shall indulge in anti-Government activities.

Adoption of legitimate methods of ventilating grievances however shall not be considered as anti-government.

Annexure V

Form of Agreement

Agreement made this day of One thousand nine hundred and between (management) of the one part and (teacher) of the other parts.

Whereas the management have agreed to engage the said teacher to serve in the name of the school at (place).....in the capacity of a teacher and on the salary hereinafter mentioned:

Now these present witness and the parties hereto do hereby agree as follows:-

1. That the management shall employ the said teacher and the said teacher shall serve the management as a teacher at (Place) from the date of his/her taking charge of such appointment until such employment shall be determined as hereinafter provided.
2. That the said teacher shall be on probation for a period of twenty four months from the date of taking charge of his/her appointment, but the management may before the expiry of that period extend it to a further period not exceeding twelve months for reasons to be recorded in writing.
3. That the said teacher will employ himself/herself honestly, efficiently and diligently under the orders and instruction of the Headmaster/Headmistress or Correspondent or other Officers of the said school under whom he shall from time to time be placed as teacher in the said school in which capacity he/she will discharge all such duties appertaining to that office and do all things which maybe required, of him / her or which are necessary to be done in his/her capacity as aforesaid and will make himself/herself in other respects generally, useful as may be required of him/her.
4. That the said teacher will not normally or on any pretence absent himself/ herself from his/her duties without first having obtained the permission of his/ her superior officers authorised in this behalf or in case of sickness or inevitable accident without forwarding where necessary a medical certificate satisfactory to the management as may be required by the leave rules for the time being in force in the said school.
5. That the said teacher will devote his/her whole time to the duties of the said employment and will not on his/her own account or otherwise either directly or indirectly carry on or be concerned in any trade, business or canvassing work, private tuition or the like of a remunerative and without the specific written sanction of the management.
6. That the said teacher shall conform to all the rules and regulations for the time being in force in the said school and obey all lawful orders and directions as he/she shall from time to time receive from any authorised officer of the said school.
7. That the management shall have the power to terminate the services of the said teacher when he becomes a permanent member of the staff of the school-

(a)

Without notice for any or all of the following reasons: Wilful neglect of duty, serious misconduct, gross insubordination,

mental unfitness, suspension or cancellation of teacher's certificate by the Director of Elementary Education, under the Code of Regulations for the approved Nursery/Primary Schools.

(b)

With three months notice or three months salary in lieu thereof for the following reasons:-

Incompetence, Retrenchment, Physical unfitness or any other good cause:

Provided that-

(1)

(i)

The management shall not terminate the services of the said teacher whether summarily or otherwise without informing him/her in writing of the grounds on which they intend to take action and giving him/her what in their view is reasonable opportunity for stating his/her case in writing and before coming to a final decision, shall duly consider his/ her statement and if he/she so desires give him/her a personal hearing or conduct an enquiry.

(ii)

The management shall not, except with the previous permission of the Director or an officer authorised by him terminate the services of the said teacher for incompetence if he/she put in five years of efficient service after he/she is confirmed in his/her appointment, and

(iii)

It shall be lawful for the management at any time if satisfied on medical evidence that the said teacher is unfit and is likely for a considerable period to continue unfit by reason of ill-health for the discharge of his/her duties as such teacher, to terminate his/her services on paying him/her as leave allowance after the date of his/her last appearance in the school, for the regular discharge of his/her duties as teacher subject to a maximum of one month's full salary.

(2)

That the said teacher when he/she becomes a permanent member of the staff of the said school, shall be entitled to have his/her services terminated either by giving to the management three months notice thereof in writing or by paying that authority three month's salary in lieu of such notice.

(3)

That the said teacher shall not during the period of this agreement when he/she has not been given notice of termination of his/her services by the management or has not given notice to the management for such termination of his/her services apply for an appointment under any other authority except through the management and the penalty for any breach of this may, at the discretion of the management be dismissed from service. The management shall not refuse to forward such application but may decline to relieve him/her when the need arises unless he/she gives due notice or pays an amount equal to the salary for three months he/she is drawing at that time.

(4)

That in respect of the teacher appointed temporarily or to act on probation, the school authority shall have power to terminate the services of any such teacher-

(i)

Without notice for any or all on the following reasons:- Wilful neglect of duty; serious misconduct; gross insubordination; mental unfitness; suspension or cancellation of teachers certificate;

(ii)

With notice of two months or two months salary in lieu thereof for the following reasons:-

Incompetence; retrenchment; physical unfitness or any other good cause.

8. That the said teacher shall be paid for such time as he/she shall be in the service of the said monthly salary in the scale of Rs.starting on an initial salary of Rs with effect from (date) and the following additional allowances (here specify the allowances).

9. That in the event of the temporary absence of the teacher from duty by reason of sickness or leave or otherwise, he/she shall be paid such salary only as shall be determined by rules for the time being in force by the said school:

Provided always that the said teacher shall get the full salary or a proportionately reduced amount per month during the vacation, accordingly as he/she has worked for the full period subject to the instructions given by the Director or an officer authorised by him.

10. That in the event of either party to this agreement failing to observe the terms thereof the aggrieved party shall have a right to appeal and the orders of the Director or an officer authorised by him shall be final and binding on the parties.

In witness whereof have here set hands

Signed by the above named in the presence of

Signed by the above named in the presence of

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